

25VECV06859 25VECV06859

County: los-angeles

Division: Civil Law and Motion

Department: NWI

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Case Number: 25VECV06859 Hearing Date: July 29, 2026 Dept: NWI

Judge KAREN MOSKOWITZ

Department _i_

Hearing Date:

Monday, July 6, 2026

Case Name:

Tammy Brawner

v. Warner Center Summit, LTD, et al.

Case No.:

25VECV06859

MOTIONS

Motion to Vacate Default

Ruling:

The Court GRANTS

Defendants' Motion to Vacate Default.

Relevant

Background:

This is a property damage case. Plaintiff in pro-per, Tammy Brawner, alleges that on January 7, 2025, a tree toppled over onto her car, destroying it. Plaintiff's vehicle was parked in a lot owned and maintained by Defendants Warner Center Summit, LTD, and G.H. Palmer Associates. Plaintiff alleges that this tree fell because Defendants negligently maintained their premises and ignored numerous warnings about potential tree collapses on the property.

On December 3, 2025, Plaintiff brought suit, alleging seven causes of action: 1) general negligence, 2) premises liability, 3) property damage, 4) NIED, 5) failure to maintain a dangerous condition of property, 6) negligence per se, and 7) willful and conscious disregard for safety – CIV § 3294.)

On February 2, 2026, Default was entered against Defendants.

On April 2, 2026, Defendants appeared for what they believed to be a CMC. They were notified that they were in default.

Later that day, Defendants filed the instant Motion to Vacate Default.

Analysis:

Defendants move to set aside the default entered against them on February 2, 2026. (Mot. to Vacate, p. 1:8-11.)

Under CCP § 473(b), the Court has the power to set aside a default judgment upon a showing that the default resulted from mistake, inadvertence, surprise, or excusable neglect. (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42.) This relief is mandatory in the case of an attorney's mistake or inadvertence if filed timely. Under CCP § 473(b), "[n]otwithstanding any other requirements of this section, the court shall . . . vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment

or dismissal entered against the attorney's client" so long as the application for relief is made "no more than six months after entry of judgment . . . and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect." (CCP § 473(b) [emphasis added].)

Here, Defendants'

attorney explains that Defendants' non-appearance in this case was due to counsel's mistake and inadvertence. Specifically, counsel explains that on January 10, 2026, they served both Defendants' Answer and four sets of discovery on Plaintiff. (Mot. to Set Aside, p. 1:12-16.) In support of this assertion, Defendants' counsel provide a copy of the cover email. (Safarian Decl. ¶ 4, Ex. I.) That same day, Defendants also filed their Answer with this Court. (Safarian Decl. ¶ 5.) Unfortunately, Defendants' initial Answer was rejected by the e-filing system, as Defendant G. H. Palmier Associates' name did not match the name on the Complaint. (Id. ¶¶ 5-6.) Thus, Defendants' Answer was never received. As a result, Default was entered against Defendants on February 2, 2026.

Defendants'

counsel learned of their mistake on April 2, 2026, when they appeared for what they believed was a CMC. (Id. ¶ 7.) Counsel immediately corrected this mistake and filed the instant motion later that day with a copy of the proposed Answer as Exhibit A. (Id. ¶ 8.)

Defendants'

counsel has attested to the fact that default was the result of counsel's own mistake. Moreover, this motion was brought just two months after entry of default. The mandatory provision of CCP § 473(b) applies and this Court grants Defendants' motion to vacate default.

Conclusion:

The Court GRANTS

Defendants' Motion to Vacate Default.

The default for Defendants Warner Center Summit, LTD, and G.H. Palmer Associates entered 2/2/26 is hereby vacated and set aside. Defendants to file and serve a separate copy of their Answer forthwith.

Case is scheduled

for Further Status Conference September 21, 2027 at 8:30 a.m. in Department NW-W.

Moving parties to
give notice.